124 Webster Avenue, Providence, Rhode Island 02909

401.521.1589 Office 401.521.1767 Fax

8(a) Certified

DUNS: 006493690

Cage Code: 6PY01

**SOLICITATION NO. 140P2018R0045**

**COTTON MILLS MUSEUM WINDOW REPLACEMENT**

**LOWE 195664**

**VOLUME II**

Table of Contents

Part A – SF1442 – Price Schedule – Amendments

Part B – SF 24 Bid Bond and Proof of Financial Capability

Part C – Section K Representations and Certifications and Company Information

Part D – Hazardous Material and Proposed Equals

Part E – General References

Part F – Limitations on Subcontracting Submission

| SOLICITATION, OFFER, AND AWARD (Construction, Alteration, or Repair) | 1. SOLICITATION NO. 140P2018R0045 | 2. TYPE OF SOLICITATION ☐ SEALED BID (IFB) ☒ NEGOTIATED (RFP) | 3. DATE ISSUED 06/21/2018 | PAGE 1 OF PAGES 141 |
|---|---|---|---|---|

**IMPORTANT -- The "offer" section on the reverse must be fully completed by offeror.**

| 4. CONTRACT NO. | 5. REQUISITION/PURCHASE REQUEST NO. | 6. PROJECT NO. |
|---|---|---|
| | | |

7. ISSUED BY CODE PDS

NPS, DSC Contracting Services Div
12795 W. Alameda Pkwy
P.O. Box 25287
Denver CO 80225-0287

8. ADDRESS OFFER TO

Refer to Section "L"

| 9. FOR INFORMATION CALL: | a. NAME | b. TELEPHONE NO. *(Include area code) (NO COLLECT CALLS)* |
|---|---|---|
| | PAULA Johnson | 303 987-6643 |

## SOLICITATION

**NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder."**

10. THE GOVERNMENT REQUIRES PERFORMANCE OF THE WORK DESCRIBED IN THESE DOCUMENTS *(Title, identifying no., date)*

LOWE 195664, Cotton Mills Museum Window Replacement

a) This acquisition is being conducted as a total small business set-aside. The North American Industrial Classification System (NAICS) code and the associated small business size standard are noted in clause 52.204-8 in section "K" of this solicitation.
b) Estimated Price Range: Between $1,000,000 - $5,000,000
c) Refer to section "L" for information regarding a pre-proposal site visit and proposal submittal requirements.
d) Information and requirements stated in sections "B" through "J" & attachments noted in section "J" apply to this solicitation and the subsequent contract.
e) Requirements noted in sections K, L, and M apply to this solicitation.
f) This is currently an unfunded requirement with a high expectation that funds will be available. When and if funds become available a contract will be awarded at that time.
g) The time zone in Block 13 is Mountain Time (MT).
h) Questions are due in writing to paula_johnson@nps.gov by Friday, July 15, 2018 at 1200 MT.

11. The Contractor shall begin performance 10 calendar days and complete it within 240 calendar days after receiving ☐ award, ☒ notice to proceed. The performance period is ☒ mandatory ☐ negotiable. (See FAR Clause 52.211-10.)

12a. THE CONTRACTOR MUST FURNISH ANY REQUIRED PERFORMANCE AND PAYMENT BONDS? ☒ YES ☐ NO
*(If "YES", indicate within how many calendar days after award in Item 12b.)*

12b. CALENDAR DAYS 15

13. ADDITIONAL SOLICITATION REQUIREMENTS:

a. Sealed offers in original and 1 copies to perform the work required are due at the place specified in Item 8 by 1200 *(hour)* local time 07/25/2018 *(date)*. If this is a sealed bid solicitation, offers will be publicly opened at that time. Sealed envelopes containing offers shall be marked to show the offeror's name and address, the solicitation number, and the date and time offers are due.

b. An offer guarantee ☒ is, ☐ is not required.

c. All offers are subject to the (1) work requirements, and (2) other provisions and clauses incorporated in the solicitation in full text or by reference.

d. Offers providing less than 90 calendar days for Government acceptance after the date offers are due will not be considered and will be rejected .

**OFFER** *(Must be fully completed by offeror)*

14. NAME AND ADDRESS OF OFFEROR *(Include ZIP Code)*

TAVARES LLC
124 WEBSTER AVENUE
PROVIDENCE, RI 02909

15. TELEPHONE NO. *(Include area code)*
(401) 521-1589

16. REMITTANCE ADDRESS *(Include only if different than item 14.)*

CODE FACILITY CODE

17. The offeror agrees to perform the work required at the prices specified below in strict accordance with the terms of this solicitation, if this offer is accepted by the Government in writing within 15 calendar days after the date offers are due. *(Insert any number equal to or greater than the minimum requirement stated in item 13d. Failure to insert any number means the offeror accepts the minimum in item 13d.)*

**AMOUNTS** Two Million Nine Hundred Forty-Two Thousand Five Hundred Forty-Eight Dollars and Zero Cents ($2,942,548.00)

18. The offeror agrees to furnish any required performance and payment bonds.

19. ACKNOWLEDGEMENT OF AMENDMENTS
*(The offeror acknowledges receipt of amendments to the solicitation -- give number and date of each)*

| AMENDMENT NO. | 1 | 2 | 3 | 4 | 5 | | | | | |
|---|---|---|---|---|---|---|---|---|---|---|
| DATE. | 6/21/2018 | 6/21/2018 | 6/21/2018 | 6/21/2018 | 6/21/2018 | | | | | |

20a. NAME AND TITLE OF PERSON AUTHORIZED TO SIGN OFFER *(Type or print)*
FERNANDO TAVARES, SOLE OWNER

20b. SIGNATURE

20c. OFFER DATE
8/3/2018

**AWARD** *(To be completed by Government)*

21. ITEMS ACCEPTED:

Continued...

22. AMOUNT

23. ACCOUNTING AND APPROPRIATION DATA

24. SUBMIT INVOICES TO ADDRESS SHOWN IN *(4 copies unless otherwise specified)*

ITEM 27

25. OTHER THAN FULL AND OPEN COMPETITION PURSUANT TO
☐ 10 U.S.C. 2304(c) ( ) ☐ 41 U.S.C. 253(c) ( )

26. ADMINISTERED BY CODE PDS
DOI, NPS, DSC Contracting Services
12795 W. Alameda Pkwy
P.O. Box 25287
Denver CO 80225-0287

27. PAYMENT WILL BE MADE BY
Invoice Processing Platform System
US Department of Treasury
http://www.ipp.gov

*CONTRACTING OFFICER WILL COMPLETE ITEM 28 OR 29 AS APPLICABLE*

☒ 28. NEGOTIATED AGREEMENT
*(Contractor is required to sign this document and return* 1 *copies to issuing office.)*
*Contractor agrees to furnish and deliver all items or perform all work requirements identified on this form and any continuation sheets for the consideration stated in this contract. The rights and obligations of the parties to this contract shall be governed by (a) this contract award, (b) the solicitation, and (c) the clauses, representations,*

☐ 29. AWARD
*(Contractor is not required to sign this document.)*
*Your offer on this solicitation is hereby accepted as to the items listed. This award consummates the contract, which consists of (a) the Government solicitation and your offer, and (b) this contract award. No further contractual document is necessary.*

30a. NAME AND TITLE OF CONTRACTOR OR PERSON AUTHORIZED TO SIGN *(Type or print)*
FERNANDO TAVARES, SOLE OWNER

30b. SIGNATURE

30c. DATE
8/3/2018

31a. NAME OF CONTRACTING OFFICER *(Type or print)*
Aaron Adams

31b. UNITED STATES OF AMERICA
BY

31c. DATE

NAME OF OFFEROR OR CONTRACTOR TAVARES LLC

| ITEM NO. (A) | SUPPLIES/SERVICES (B) | QUANTITY (C) | UNIT (D) | UNIT PRICE (E) | AMOUNT (F) |
|---|---|---|---|---|---|
| | Estimated Period of Performance:<br>09/24/2018 to 06/21/2019<br><br>Refer to FAR Clause 52.211-10 | | | | |

# SECTION B – SUPPLIES OR SERVICES AND PRICES

## CONTRACT PRICE SCHEDULE

**SOLICITATION NUMBER:** 140P2018R0045

**PARK - PMIS:** LOWE 195664

**DEVELOPED AREA:** Lowell National Historical Park, Lowell, Massachusetts

**PROJECT TITLE:** Cotton Mills Museum Window Replacement

Notice: Offerors are required to submit, at a minimum, an offer that conforms to the solicitation documents with pricing for Base line items and all option line items. Failure to do so may render the proposal unacceptable. On lump-sum line items, provide the total price only. For all unit-priced line items, provide the unit price and the extended total price. If no specific line item exists for a portion of the work, include the costs in a related item. In case of error in calculation of extended prices, the unit price governs. In case of summation error, the total corrected amounts govern. Round totals & extended prices to whole dollars. Refer to section "H" of this solicitation for additional information regarding contract options

| CONTRACT LINE ITEM NUMBER (CLIN) | CONTRACT LINE ITEM TITLE | QUANTITY | UNIT OF MEASURE | UNIT PRICE | TOTAL PRICE |
|---|---|---|---|---|---|
| 1 | Base Contract | 1 | LS | $2,942,548.00 | $ 2,942,548.00 |
| TOTAL BASE PRICE (Contract Line Item Number 1) ---------- | | | | | $ 2,942,548.00 |
| 2 | OPTION A, Stone Sill Crack Repair | 14 | EA | $ 500.00 | $ 7,000.00 |
| 3 | OPTION B, Stone Sill Replacement | 2 | EA | $1,500.00 | $ 3,000.00 |
| TOTAL PRICE FOR ALL OPTIONS (Contract Line Item Numbers 2 through 3) ---------- | | | | | $ 10,000.00 |
| TOTAL PROPOSED PRICE - BASE PLUS ALL OPTIONS (Contract Line Item Numbers 1 through 3) ---------- | | | | | $ 2,952,548.00 |
| All measurement and payment information is included in the project specifications, Section 012700. | | | | | |

**AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT**

1. CONTRACT ID CODE

PAGE 1 OF PAGES 1

2. AMENDMENT/MODIFICATION NO. 0001

3. EFFECTIVE DATE 06/21/2018

4. REQUISITION/PURCHASE REQ. NO.

5. PROJECT NO. *(If applicable)*

6. ISSUED BY CODE PDS

NPS, DSC Contracting Services Div
12795 W. Alameda Pkwy
P.O. Box 25287
Denver CO 80225-0287

7. ADMINISTERED BY *(If other than Item 6)* CODE PDS

DOI, NPS, DSC Contracting Services
12795 W. Alameda Pkwy
P.O. Box 25287
Denver CO 80225-0287

8. NAME AND ADDRESS OF CONTRACTOR *(No., street, county, State and ZIP Code)*

TAVARES LLC
124 WEBSTER AVENUE
PROVIDENCE, RI 02909

CODE

FACILITY CODE

(x) 9A. AMENDMENT OF SOLICITATION NO. 140P2018R0045

x 9B. DATED *(SEE ITEM 11)* 06/21/2018

10A. MODIFICATION OF CONTRACT/ORDER NO.

10B. DATED *(SEE ITEM 13)*

**11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS**

☒ The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offers ☐ is extended, ☒ is not extended.

Offers must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended , by one of the following methods: (a) By completing Items 8 and 15, and returning 1 copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted ; or (c) By separate letter or telegram which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGEMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER. If by virtue of this amendment you desire to change an offer already submitted , such change may be made by telegram or letter, provided each telegram or letter makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.

12. ACCOUNTING AND APPROPRIATION DATA *(If required)*

**13. THIS ITEM ONLY APPLIES TO MODIFICATION OF CONTRACTS/ORDERS. IT MODIFIES THE CONTRACT/ORDER NO. AS DESCRIBED IN ITEM 14.**

CHECK ONE

A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: *(Specify authority)* THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NO. IN ITEM 10A.

B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES *(such as changes in paying office, appropriation date, etc.)* SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(b).

C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:

D. OTHER *(Specify type of modification and authority)*

**E. IMPORTANT:** Contractor ☐ is not. ☐ is required to sign this document and return _____ copies to the issuing office.

14. DESCRIPTION OF AMENDMENT/MODIFICATION *(Organized by UCF section headings, including solicitation/contract subject matter where feasible.)*

The purpose of this amendment is to update the site visit information in FAR Provision 52.236-27 Site Visit (Construction) - Alternate I. The site visit date is changed from July 11, 2018 to July 10, 2018 at 900 ET. Attendees are encouraged, though not required, to email confirmation of attendance at the site visit to paula_johnson@nps.gov by July 6, 2018 at 1500 ET.

All other terms and conditions remain unchanged. Proposal submission(s) must contain acknowledgement of all amendments.
Period of Performance: 09/24/2018 to 06/21/2019

Except as provided herein, all terms and conditions of the document referenced in Item 9 A or 10A, as heretofore changed, remains unchanged and in full force and effect.

15A. NAME AND TITLE OF SIGNER *(Type or print)*

FERNANDO TAVARES, SOLE OWNER

16A. NAME AND TITLE OF CONTRACTING OFFICER *(Type or print)*

Aaron Adams

15B. CONTRACTOR/OFFEROR

*(Signature of person authorized to sign)*

15C. DATE SIGNED 7/25/2018

16B. UNITED STATES OF AMERICA

*(Signature of Contracting Officer)*

16C. DATE SIGNED

**AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT**

1. CONTRACT ID CODE

PAGE 1 OF PAGES 1

2. AMENDMENT/MODIFICATION NO. 0002

3. EFFECTIVE DATE 06/21/2018

4. REQUISITION/PURCHASE REQ. NO.

5. PROJECT NO. *(If applicable)*

6. ISSUED BY CODE PDS

NPS, DSC Contracting Services Div
12795 W. Alameda Pkwy
P.O. Box 25287
Denver CO 80225-0287

7. ADMINISTERED BY *(If other than Item 6)* CODE PDS

DOI, NPS, DSC Contracting Services
12795 W. Alameda Pkwy
P.O. Box 25287
Denver CO 80225-0287

8. NAME AND ADDRESS OF CONTRACTOR *(No., street, county, State and ZIP Code)*

TAVARES LLC
124 WEBSTER AVENUE
PROVIDENCE, RI 02909

CODE

FACILITY CODE

(x) 9A. AMENDMENT OF SOLICITATION NO. 140P2018R0045

x 9B. DATED *(SEE ITEM 11)* 06/21/2018

10A. MODIFICATION OF CONTRACT/ORDER NO.

10B. DATED *(SEE ITEM 13)*

**11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS**

☒ The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offers ☐ is extended, ☒ is not extended.

Offers must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended , by one of the following methods: (a) By completing Items 8 and 15, and returning 1 copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted ; or (c) By separate letter or telegram which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGEMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER. If by virtue of this amendment you desire to change an offer already submitted , such change may be made by telegram or letter, provided each telegram or letter makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.

12. ACCOUNTING AND APPROPRIATION DATA *(If required)*

**13. THIS ITEM ONLY APPLIES TO MODIFICATION OF CONTRACTS/ORDERS. IT MODIFIES THE CONTRACT/ORDER NO. AS DESCRIBED IN ITEM 14.**

CHECK ONE

A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: *(Specify authority)* THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NO. IN ITEM 10A.

B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES *(such as changes in paying office, appropriation date, etc.)* SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(b).

C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:

D. OTHER *(Specify type of modification and authority)*

**E. IMPORTANT:** Contractor ☐ is not. ☐ is required to sign this document and return _____ copies to the issuing office.

14. DESCRIPTION OF AMENDMENT/MODIFICATION *(Organized by UCF section headings, including solicitation/contract subject matter where feasible.)*

The purpose of this amendment is to update the site visit information in FAR Provision 52.236-27 Site Visit (Construction) - Alternate I. The site visit date is changed from July 10, 2018 to July 9, 2018 at 900 ET. This is the final site visit date change. Attendees are encouraged, though not required, to email confirmation of attendance at the site visit to paula_johnson@nps.gov by July 6, 2018 at 1500 ET.

All other terms and conditions remain unchanged. Proposal submission(s) must contain acknowledgement of all amendments.
Period of Performance: 09/24/2018 to 06/21/2019

Except as provided herein, all terms and conditions of the document referenced in Item 9 A or 10A, as heretofore changed, remains unchanged and in full force and effect.

15A. NAME AND TITLE OF SIGNER *(Type or print)*

FERNANDO TAVARES, SOLE OWNER

16A. NAME AND TITLE OF CONTRACTING OFFICER *(Type or print)*

Aaron Adams

15B. CONTRACTOR/OFFEROR

*(Signature of person authorized to sign)*

15C. DATE SIGNED 7/25/2018

16B. UNITED STATES OF AMERICA

*(Signature of Contracting Officer)*

16C. DATE SIGNED

NSN 7540-01-152-8070
Previous edition unusable

STANDARD FORM 30 (REV. 10-83)
Prescribed by GSA
FAR (48 CFR) 53.243

**AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT**

| 1. CONTRACT ID CODE | PAGE | OF PAGES |
|---|---|---|
| | 1 | 1 |

| 2. AMENDMENT/MODIFICATION NO. | 3. EFFECTIVE DATE | 4. REQUISITION/PURCHASE REQ. NO. | 5. PROJECT NO. *(If applicable)* |
|---|---|---|---|
| 0003 | 06/21/2018 | | |

6. ISSUED BY CODE PDS

NPS, DSC Contracting Services Div
12795 W. Alameda Pkwy
P.O. Box 25287
Denver CO 80225-0287

7. ADMINISTERED BY *(If other than Item 6)* CODE PDS

DOI, NPS, DSC Contracting Services
12795 W. Alameda Pkwy
P.O. Box 25287
Denver CO 80225-0287

8. NAME AND ADDRESS OF CONTRACTOR *(No., street, county, State and ZIP Code)*

TAVARES LLC
124 WEBSTER AVENUE
PROVIDENCE, RI 02909

CODE | FACILITY CODE

(x) 9A. AMENDMENT OF SOLICITATION NO. 140P2018R0045

x 9B. DATED *(SEE ITEM 11)* 06/21/2018

10A. MODIFICATION OF CONTRACT/ORDER NO.

10B. DATED *(SEE ITEM 13)*

**11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS**

☒ The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offers ☐ is extended, ☒ is not extended.
Offers must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended , by one of the following methods: (a) By completing Items 8 and 15, and returning 1 copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted ; or (c) By separate letter or telegram which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGEMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER. If by virtue of this amendment you desire to change an offer already submitted , such change may be made by telegram or letter, provided each telegram or letter makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.

12. ACCOUNTING AND APPROPRIATION DATA *(If required)*

**13. THIS ITEM ONLY APPLIES TO MODIFICATION OF CONTRACTS/ORDERS. IT MODIFIES THE CONTRACT/ORDER NO. AS DESCRIBED IN ITEM 14.**

CHECK ONE

A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: *(Specify authority)* THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NO. IN ITEM 10A.

B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES *(such as changes in paying office, appropriation date, etc.)* SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(b).

C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:

D. OTHER *(Specify type of modification and authority)*

**E. IMPORTANT:** Contractor ☐ is not. ☐ is required to sign this document and return _____ copies to the issuing office.

14. DESCRIPTION OF AMENDMENT/MODIFICATION *(Organized by UCF section headings, including solicitation/contract subject matter where feasible.)*

The purpose of this amendment is to:
A) Incorporate the list of site visit attendees and the site visit agenda from the organized site visit held on July 9, 2018 at 900 ET. B) Change the question due date from 1200 MT on July 15, 2018 to 800 MT on July 16, 2018. Questions shall be sent in writing to paula_johnson@nps.gov.

All other terms and conditions remain unchanged. Proposal submission(s) must contain acknowledgement of all amendments.

Except as provided herein, all terms and conditions of the document referenced in Item 9 A or 10A, as heretofore changed, remains unchanged and in full force and effect.

| 15A. NAME AND TITLE OF SIGNER *(Type or print)* | | 16A. NAME AND TITLE OF CONTRACTING OFFICER *(Type or print)* | |
|---|---|---|---|
| FERNANDO TAVARES, SOLE OWNER | | Aaron Adams | |
| 15B. CONTRACTOR/OFFEROR | 15C. DATE SIGNED | 16B. UNITED STATES OF AMERICA | 16C. DATE SIGNED |
| *(Signature of person authorized to sign)* | 7/25/2018 | *(Signature of Contracting Officer)* | |

**AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT**

1. CONTRACT ID CODE

PAGE 1 OF PAGES 1

2. AMENDMENT/MODIFICATION NO. 0004

3. EFFECTIVE DATE 06/21/2018

4. REQUISITION/PURCHASE REQ. NO.

5. PROJECT NO. *(If applicable)*

6. ISSUED BY CODE PDS

NPS, DSC Contracting Services Div
12795 W. Alameda Pkwy
P.O. Box 25287
Denver CO 80225-0287

7. ADMINISTERED BY *(If other than Item 6)* CODE PDS

DOI, NPS, DSC Contracting Services
12795 W. Alameda Pkwy
P.O. Box 25287
Denver CO 80225-0287

8. NAME AND ADDRESS OF CONTRACTOR *(No., street, county, State and ZIP Code)*

TAVARES LLC
124 WEBSTER AVENUE
PROVIDENCE, RI 02909

CODE

FACILITY CODE

(x) 9A. AMENDMENT OF SOLICITATION NO. 140P2018R0045

x 9B. DATED *(SEE ITEM 11)* 06/21/2018

10A. MODIFICATION OF CONTRACT/ORDER NO.

10B. DATED *(SEE ITEM 13)*

**11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS**

☒ The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offers ☐ is extended, ☒ is not extended.
Offers must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended , by one of the following methods: (a) By completing Items 8 and 15, and returning 1 copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted ; or (c) By separate letter or telegram which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGEMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER. If by virtue of this amendment you desire to change an offer already submitted , such change may be made by telegram or letter, provided each telegram or letter makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.

12. ACCOUNTING AND APPROPRIATION DATA *(If required)*

**13. THIS ITEM ONLY APPLIES TO MODIFICATION OF CONTRACTS/ORDERS. IT MODIFIES THE CONTRACT/ORDER NO. AS DESCRIBED IN ITEM 14.**

CHECK ONE

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B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES *(such as changes in paying office, appropriation date, etc.)* SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(b).

C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:

D. OTHER *(Specify type of modification and authority)*

**E. IMPORTANT:** Contractor ☐ is not. ☐ is required to sign this document and return _____ copies to the issuing office.

14. DESCRIPTION OF AMENDMENT/MODIFICATION *(Organized by UCF section headings, including solicitation/contract subject matter where feasible.)*

The purpose of this amendment is to:
A) Incorporate the attached list of Questions & Answers.
B) Update Attachment 3, General Decision Number MA180001 (dated 07/06/2018).

All other terms and conditions remain unchanged. Proposal submission(s) must contain acknowledgement of all amendments. The due date remains 07/25/2018 at 1200 MT. Offerors are encouraged to carefully review Section L for all proposal submission instructions.
Period of Performance: 09/24/2018 to 06/21/2019

Except as provided herein, all terms and conditions of the document referenced in Item 9 A or 10A, as heretofore changed, remains unchanged and in full force and effect.

15A. NAME AND TITLE OF SIGNER *(Type or print)*

FERNANDO TAVARES, SOLE OWNER

16A. NAME AND TITLE OF CONTRACTING OFFICER *(Type or print)*

Aaron Adams

15B. CONTRACTOR/OFFEROR

*(Signature of person authorized to sign)*

15C. DATE SIGNED 7/25/2018

16B. UNITED STATES OF AMERICA

*(Signature of Contracting Officer)*

16C. DATE SIGNED

**AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT**

| 1. CONTRACT ID CODE | PAGE | OF PAGES |
|---|---|---|
| | 1 | 1 |

| 2. AMENDMENT/MODIFICATION NO. | 3. EFFECTIVE DATE | 4. REQUISITION/PURCHASE REQ. NO. | 5. PROJECT NO. *(If applicable)* |
|---|---|---|---|
| 0005 | 06/21/2018 | | |

**6. ISSUED BY** CODE PDS

NPS, DSC Contracting Services Div
12795 W. Alameda Pkwy
P.O. Box 25287
Denver CO 80225-0287

**7. ADMINISTERED BY** *(If other than Item 6)* CODE PDS

DOI, NPS, DSC Contracting Services
12795 W. Alameda Pkwy
P.O. Box 25287
Denver CO 80225-0287

**8. NAME AND ADDRESS OF CONTRACTOR** *(No., street, county, State and ZIP Code)*

TAVARES LLC
124 WEBSTER AVENUE
PROVIDENCE, RI 02909

CODE | FACILITY CODE

(x) **9A. AMENDMENT OF SOLICITATION NO.** 140P2018R0045

x **9B. DATED** *(SEE ITEM 11)* 06/21/2018

**10A. MODIFICATION OF CONTRACT/ORDER NO.**

**10B. DATED** *(SEE ITEM 13)*

**11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS**

☒ The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offers ☒ is extended, ☐ is not extended.
Offers must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended , by one of the following methods: (a) By completing Items 8 and 15, and returning 1 copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted ; or (c) By separate letter or telegram which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGEMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER. If by virtue of this amendment you desire to change an offer already submitted , such change may be made by telegram or letter, provided each telegram or letter makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.

12. ACCOUNTING AND APPROPRIATION DATA *(If required)*

**13. THIS ITEM ONLY APPLIES TO MODIFICATION OF CONTRACTS/ORDERS. IT MODIFIES THE CONTRACT/ORDER NO. AS DESCRIBED IN ITEM 14.**

CHECK ONE

A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: *(Specify authority)* THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NO. IN ITEM 10A.

B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES *(such as changes in paying office, appropriation date, etc.)* SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(b).

C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:

D. OTHER *(Specify type of modification and authority)*

**E. IMPORTANT:** Contractor ☐ is not. ☐ is required to sign this document and return _____ copies to the issuing office.

14. DESCRIPTION OF AMENDMENT/MODIFICATION *(Organized by UCF section headings, including solicitation/contract subject matter where feasible.)*

The purpose of this amendment is to:
A) Incorporate an updated list of Questions & Answers. Due to a forthcoming hazardous material(s) survey, some of the original answers provided have required modification.
B) Change the proposal due date from July 25, 2018 at 1200 MT to August 3, 2018 at 1200 MT.
Proposal submission instructions outlined in Section L remain unchanged.

All other terms and conditions remain unchanged. Proposal submission(s) must contain acknowledgement of all amendments.
Period of Performance: 09/24/2018 to 06/21/2019

Except as provided herein, all terms and conditions of the document referenced in Item 9 A or 10A, as heretofore changed, remains unchanged and in full force and effect.

| 15A. NAME AND TITLE OF SIGNER *(Type or print)* | | 16A. NAME AND TITLE OF CONTRACTING OFFICER *(Type or print)* | |
|---|---|---|---|
| FERNANDO TAVARES | | Aaron Adams | |
| 15B. CONTRACTOR/OFFEROR | 15C. DATE SIGNED | 16B. UNITED STATES OF AMERICA | 16C. DATE SIGNED |
| *(Signature of person authorized to sign)* | 7/20/2018 | *(Signature of Contracting Officer)* | |

| **BID BOND**<br>*(See instructions on reverse)* | DATE BOND EXECUTED *(Must not be later than bid opening date)*<br>July 19, 2018 | **OMB Control Number: 9000-0045**<br>**Expiration Date: 7/31/2019** |
|---|---|---|

Paperwork Reduction Act Statement - This information collection meets the requirements of 44 USC § 3507, as amended by section 2 of the Paperwork Reduction Act of 1995. You do not need to answer these questions unless we display a valid Office of Management and Budget (OMB) control number. The OMB control number for this collection is 9000-0045. We estimate that it will take 25 minutes to read the instructions, gather the facts, and answer the questions. Send only comments relating to our time estimate, including suggestions for reducing this burden, or any other aspects of this collection of information to: General Services Administration, Regulatory Secretariat Division (M1V1CB), 1800 F Street, NW, Washington, DC 20405.

| PRINCIPAL *(Legal name and business address)* | TYPE OF ORGANIZATION *("X" one)* |
|---|---|
| Tavares, LLC<br>124 Webster Avenue<br>Providence, RI 02909 | ☐ INDIVIDUAL ☐ PARTNERSHIP ☐ JOINT VENTURE<br>☐ CORPORATION ☒ OTHER *(Specify)* LLC<br>STATE OF INCORPORATION<br>Rhode Island |

SURETY(IES) *(Name and business address)*
Berkley Insurance Company
475 Steamboat Road
Greenwich, CT 06830

| PENAL SUM OF BOND | | | | | BID IDENTIFICATION | |
|---|---|---|---|---|---|---|
| PERCENT OF BID PRICE | AMOUNT NOT TO EXCEED | | | | BID DATE | INVITATION NUMBER |
| | MILLION(S) | THOUSAND(S) | HUNDRED(S) | CENTS | July 25, 2018 | 140P2018R0045 |
| 20% | 3 | 000 | 000 | 00 | FOR *(Construction, Supplies or Services)* | Cotton Mills Museum Window Replacement |

OBLIGATION:

We, the Principal and Surety(ies) are firmly bound to the United States of America (hereinafter called the Government) in the above penal sum. For payment of the penal sum, we bind ourselves, our heirs, executors, administrators, and successors, jointly and severally. However, where the Sureties are corporations acting as co-sureties, we, the Sureties, bind ourselves in such sum "jointly and severally" as well as "severally" only for the purpose of allowing a joint action or actions against any or all of us. For all other purposes, each Surety binds itself, jointly and severally with the Principal, for the payment of the sum shown opposite the name of the Surety. If no limit of liability is indicated, the limit of liability is the full amount of the penal sum.

CONDITIONS:

The Principal has submitted the bid identified above.

THEREFORE:

The above obligation is void if the Principal - (a) upon acceptance by the Government of the bid identified above, within the period specified therein for acceptance (sixty (60) days if no period is specified), executes the further contractual documents and gives the bond(s) required by the terms of the bid as accepted within the time specified (ten (10) days if no period is specified) after receipt of the forms by the principal; or (b) in the event of failure to execute such further contractual documents and give such bonds, pays the Government for any cost of procuring the work which exceeds the amount of the bid.

Each Surety executing this instrument agrees that its obligation is not impaired by any extension(s) of the time for acceptance of the bid that the Principal may grant to the Government. Notice to the surety(ies) of extension(s) is waived. However, waiver of the notice applies only to extensions aggregating not more than sixty (60) calendar days in addition to the period originally allowed for acceptance of the bid.

WITNESS:

The Principal and Surety(ies) executed this bid bond and affixed their seals on the above date.

Tavares, LLC

**PRINCIPAL**

| | | | | |
|---|---|---|---|---|
| SIGNATURE(S) | 1. Fernando Tavares (Seal) | 2. (Seal) | 3. (Seal) | Corporate Seal |
| NAME(S) & TITLE(S) *(Typed)* | 1. Fernando Tavares, Sole Owner | 2. | 3. | |

**INDIVIDUAL SURETY(IES)**

| | | |
|---|---|---|
| SIGNATURE(S) | 1. (Seal) | 2. (Seal) |
| NAME(S) *(Typed)* | 1. | 2. |

**CORPORATE SURETY(IES)**

| | | | | | |
|---|---|---|---|---|---|
| SURETY A | NAME & ADDRESS | Berkley Insurance Company<br>475 Steamboat Road, Greenwich, CT 06830 | STATE OF INCORPORATION<br>DE | LIABILITY LIMIT<br>Twenty Percent (20%) of bid price not to exceed $3,000,000 | BERKLEY INSURANCE COMPANY CORPORATE SEAL Corporate DELAWARE |
| | SIGNATURE(S) | 1. | 2. | | |
| | NAME(S) & TITLE(S) *(Typed)* | 1. Sylvanna Geha , Attorney-in-Fact | 2. | | |

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*Previous edition is NOT usable*

**STANDARD FORM 24 (REV. 8/2016)**
Prescribed by GSA - FAR (48 CFR) 53.228(a)

| | | | | | |
|---|---|---|---|---|---|
| SURETY B | NAME & ADDRESS | | STATE OF INCORPORATION | LIABILITY LIMIT ($) | Corporate Seal |
| | SIGNATURE(S) | 1. | 2. | | |
| | NAME(S) & TITLE(S) *(Typed)* | 1. | 2. | | |
| SURETY C | NAME & ADDRESS | | STATE OF INCORPORATION | LIABILITY LIMIT ($) | Corporate Seal |
| | SIGNATURE(S) | 1. | 2. | | |
| | NAME(S) & TITLE(S) *(Typed)* | 1. | 2. | | |
| SURETY D | NAME & ADDRESS | | STATE OF INCORPORATION | LIABILITY LIMIT ($) | Corporate Seal |
| | SIGNATURE(S) | 1. | 2. | | |
| | NAME(S) & TITLE(S) *(Typed)* | 1. | 2. | | |
| SURETY E | NAME & ADDRESS | | STATE OF INCORPORATION | LIABILITY LIMIT ($) | Corporate Seal |
| | SIGNATURE(S) | 1. | 2. | | |
| | NAME(S) & TITLE(S) *(Typed)* | 1. | 2. | | |
| SURETY F | NAME & ADDRESS | | STATE OF INCORPORATION | LIABILITY LIMIT ($) | Corporate Seal |
| | SIGNATURE(S) | 1. | 2. | | |
| | NAME(S) & TITLE(S) *(Typed)* | 1. | 2. | | |
| SURETY G | NAME & ADDRESS | | STATE OF INCORPORATION | LIABILITY LIMIT ($) | Corporate Seal |
| | SIGNATURE(S) | 1. | 2. | | |
| | NAME(S) & TITLE(S) *(Typed)* | 1. | 2. | | |

## INSTRUCTIONS

1. This form is authorized for use when a bid guaranty is required. Any deviation from this form will require the written approval of the Administrator of General Services.

2. Insert the full legal name and business address of the Principal in the space designated "Principal" on the face of the form. An authorized person shall sign the bond. Any person signing in a representative capacity (e.g., an attorney-in-fact) must furnish evidence of authority if that representative is not a member of the firm, partnership, or joint venture, or an officer of the corporation involved.

3. The bond may express penal sum as a percentage of the bid price. In these cases, the bond may state a maximum dollar limitation (e.g., 20% of the bid price but the amount not to exceed _____ dollars).

4. (a) Corporations executing the bond as sureties must appear on the Department of the Treasury's list of approved sureties and must act within the limitations listed therein. The value put into the LIABILITY LIMIT block is the penal sum (i.e., the face value) of the bond, unless a co-surety arrangement is proposed.

(b) When multiple corporate sureties are involved, their names and addresses shall appear in the spaces (Surety A, Surety B, etc.) headed "CORPORATE SURETY(IES)." In the space designated "SURETY(IES)" on the face of the form, insert only the letter identifier corresponding to each of the sureties. Moreover, when co-surety arrangements exist, the parties may allocate their respective limitations of liability under the bond, provided that the sum total of their liability equals 100% of the bond penal sum.

(c) When individual sureties are involved, a completed Affidavit of Individual Surety (Standard Form 28) for each individual surety, shall accompany the bond. The Government may require the surety to furnish additional substantiating information concerning its financial capability.

5. Corporations executing the bond shall affix their corporate seals. Individuals shall execute the bond opposite the word "Corporate Seal"; and shall affix an adhesive seal if executed in Maine, New Hampshire, or any other jurisdiction requiring adhesive seals.

6. Type the name and title of each person signing this bond in the space provided.

7. In its application to negotiated contracts, the terms "bid" and "bidder" shall include "proposal" and "offeror."

No. BI-8090e

POWER OF ATTORNEY
**BERKLEY INSURANCE COMPANY**
WILMINGTON, DELAWARE

NOTICE: The warning found elsewhere in this Power of Attorney affects the validity thereof. Please review carefully.

KNOW ALL MEN BY THESE PRESENTS, that BERKLEY INSURANCE COMPANY (the "Company"), a corporation duly organized and existing under the laws of the State of Delaware, having its principal office in Greenwich, CT, has made, constituted and appointed, and does by these presents make, constitute and appoint: ***John J. Gambino; Nicole Roy; Sandra C. Lopes; Kathleen M. Flanagan; Jean M. Feeney; Nicholas Labbe; Laurie Rothwell; Donald L. Goodrich; or Sylvanna Geha of Alliant Insurance Services, Inc. of Boston, MA*** its true and lawful Attorney-in-Fact, to sign its name as surety only as delineated below and to execute, seal, acknowledge and deliver any and all bonds and undertakings, with the exception of Financial Guaranty Insurance, providing that no single obligation shall exceed **Fifty Million and 00/100 U.S. Dollars (U.S.$50,000,000.00)**, to the same extent as if such bonds had been duly executed and acknowledged by the regularly elected officers of the Company at its principal office in their own proper persons.

This Power of Attorney shall be construed and enforced in accordance with, and governed by, the laws of the State of Delaware, without giving effect to the principles of conflicts of laws thereof. This Power of Attorney is granted pursuant to the following resolutions which were duly and validly adopted at a meeting of the Board of Directors of the Company held on January 25, 2010:

**RESOLVED**, that, with respect to the Surety business written by Berkley Surety, the Chairman of the Board, Chief Executive Officer, President or any Vice President of the Company, in conjunction with the Secretary or any Assistant Secretary are hereby authorized to execute powers of attorney authorizing and qualifying the attorney-in-fact named therein to execute bonds, undertakings, recognizances, or other suretyship obligations on behalf of the Company, and to affix the corporate seal of the Company to powers of attorney executed pursuant hereto; and said officers may remove any such attorney-in-fact and revoke any power of attorney previously granted; and further

**RESOLVED**, that such power of attorney limits the acts of those named therein to the bonds, undertakings, recognizances, or other suretyship obligations specifically named therein, and they have no authority to bind the Company except in the manner and to the extent therein stated; and further

**RESOLVED**, that such power of attorney revokes all previous powers issued on behalf of the attorney-in-fact named; and further

**RESOLVED**, that the signature of any authorized officer and the seal of the Company may be affixed by facsimile to any power of attorney or certification thereof authorizing the execution and delivery of any bond, undertaking, recognizance, or other suretyship obligation of the Company; and such signature and seal when so used shall have the same force and effect as though manually affixed. The Company may continue to use for the purposes herein stated the facsimile signature of any person or persons who shall have been such officer or officers of the Company, notwithstanding the fact that they may have ceased to be such at the time when such instruments shall be issued.

IN WITNESS WHEREOF, the Company has caused these presents to be signed and attested by its appropriate officers and its corporate seal hereunto affixed this 18th day of May, 2018.

Attest: Berkley Insurance Company

(Seal) By _____ By _____

Ira S. Lederman
Executive Vice President & Secretary

Jeffrey M. Hafter
Senior Vice President

**WARNING: THIS POWER INVALID IF NOT PRINTED ON BLUE "BERKLEY" SECURITY PAPER.**

**STATE OF CONNECTICUT )**
**) ss:**
**COUNTY OF FAIRFIELD )**

Sworn to before me, a Notary Public in the State of Connecticut, this 18th day of May 2018, by Ira S. Lederman and Jeffrey M. Hafter who are sworn to me to be the Executive Vice President and Secretary, and the Senior Vice President, respectively, of Berkley Insurance Company.

MARIA C. RUNDBAKEN
NOTARY PUBLIC
MY COMMISSION EXPIRES
APRIL 30, 2019

_____
Notary Public, State of Connecticut

**CERTIFICATE**

I, the undersigned, Assistant Secretary of BERKLEY INSURANCE COMPANY, DO HEREBY CERTIFY that the foregoing is a true, correct and complete copy of the original Power of Attorney; that said Power of Attorney has not been revoked or rescinded and that the authority of the Attorney-in-Fact set forth therein, who executed the bond or undertaking to which this Power of Attorney is attached, is in full force and effect as of this date.

Given under my hand and seal of the Company, this _____ day of JUL 19 2018.

(Seal)

_____
Vincent P. Forte

**WARNING** – Any unauthorized reproduction or alteration of this document is prohibited. This power of attorney is void unless seals are readable and the certification seal at the bottom is embossed. The background imprint, warning and **verification instructions** (on reverse) must be in blue ink.

# TAVARES, LLC
## (a Limited Liability Company)

FINANCIAL STATEMENTS AND SUPPLEMENTARY INFORMATION
WITH INDEPENDENT ACCOUNTANT'S REVIEW REPORT
FOR THE YEAR ENDED DECEMBER 31, 2017

# TAVARES, LLC
# PROVIDENCE, RHODE ISLAND

DECEMBER 31, 2017

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*Ronald Carmark*
*Certified Public Accountant*

225 Newman Avenue, 2nd Floor
Rumford, Rhode Island 02916
Phone: 401.383.3665
Fax: 401.383.7539

# INDEPENDENT ACCOUNTANT'S REVIEW REPORT

To Management
Tavares, LLC
124 Webster Avenue
Providence, RI 02908

I have reviewed the accompanying financial statements of Tavares, LLC (a Limited Liability Company), which compromise the balance sheet as of December 31, 2017, and the related statements of income and member's equity and cash flows for the year then ended, and the related notes to the financial statements. A review includes primarily applying analytical procedures to management's financial data and making inquiries of management. A review is substantially less in scope than an audit, the objective of which is the expression of an opinion regarding the financial statements as a whole. Accordingly, I do not express such an opinion.

## Management's Responsibility for the Financial Statements

Management is responsible for the preparation and fair presentation of the financial statements in accordance with accounting principles generally accepted in the United States of America; this includes the design, implementation, and maintenance of internal control relevant to the preparation and fair presentation of financial statements that are free from material misstatement whether due to fraud or error.

## Accountant's Responsibility

My responsibility is to conduct the review engagement in accordance with Statements on Standards for Accounting and Review Services promulgated by the Accounting and Review Services Committee of the AICPA. Those standards require me to perform procedures to obtain limited assurance as a basis for reporting whether I am aware of any material modifications that should be made to the financial statements for them to be in accordance with accounting principles generally accepted in the United States of America. I believe that the results of my procedures provide a reasonable basis of my conclusion.

## Accountant's Conclusion

Based on my review, I am not aware of any material modifications that should be made to the accompanying financial statements in order for them to be in accordance with accounting principles generally accepted in the United States of America.



Permission to publish excerpts from this report or references thereto with mention of our name, is withheld until the form and substance of such excerpts or references are approved by us.

To Management
Tavares, LLC
Providence, RI 02908

**Supplementary Information**

The supplementary information included on accompanying page 15 is presented for purposes of additional analysis and is not a required part of the basic financial statements. The information is the representation of management. I have reviewed the information and, based on my review, I am not aware of any material modifications that should be made to the information in order for it to be in accordance with accounting principles generally accepted in the United States of America. I have not audited the information and, accordingly, do not express an opinion on such information.

Ronald Cash CPA

Certified Public Accountant

Rumford, Rhode Island
May 10, 2018

# PART IV – REPRESENTATIONS AND INSTRUCTIONS

## SECTION K – REPRESENTATIONS, CERTIFICATIONS AND OTHER STATEMENTS OF OFFERORS

### 52.203-18 PROHIBITION ON CONTRACTING WITH ENTITIES THAT REQUIRE CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS—REPRESENTATION (JAN 2017)

(a) Definition.

"Internal confidentiality agreement or statement," "subcontract", and "subcontractor", as used in this provision, are defined in the clause at 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.

(b) In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions), Government agencies are not permitted to use funds appropriated (or otherwise made available) for contracts with an entity that requires employees or subcontractors of such entity seeking to report waste, fraud, or abuse to sign internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting such waste, fraud, or abuse to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information.

(c) The prohibition in paragraph (b) of this provision does not contravene requirements applicable to Standard Form 312, (Classified Information Nondisclosure Agreement), Form 4414 (Sensitive Compartmented Information Nondisclosure Agreement), or any other form issued by a Federal department or agency governing the nondisclosure of classified information.

(d) Representation. By submission of its offer, the Offeror represents that it will not require its employees or subcontractors to sign or comply with internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting waste, fraud, or abuse related to the performance of a Government contract to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information (e.g., agency Office of the Inspector General).

(End of provision)

### 52.204-8 ANNUAL REPRESENTATIONS AND CERTIFICATIONS (JAN 2018)

(a)(1) The North American Industry Classification System (NAICS) code for this acquisition is 236220 Commercial and Institutional Building Construction.

(2) The small business size standard is $36.5M.

(3) The small business size standard for a concern which submits an offer in its own name, other than on a construction or service contract, but which proposes to furnish a product which it did not itself manufacture, is 500 employees.

(b)(1) If the provision at 52.204-7, System for Award Management, is included in this solicitation, paragraph (d) of this provision applies.

(2) If the provision at 52.204-7 is not included in this solicitation, and the offeror is currently registered in the System for Award Management (SAM), and has completed the Representations and Certifications section of SAM electronically, the offeror may choose to use paragraph (d) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The offeror shall indicate which option applies by checking one of the following boxes:

□ (i) Paragraph (d) applies.

□ (ii) Paragraph (d) does not apply and the offeror has completed the individual representations and certifications in the solicitation.

(c)(1) The following representations or certifications in SAM are applicable to this solicitation as indicated:

(i) 52.203-2, Certificate of Independent Price Determination. This provision applies to solicitations when a firm-fixed-price contract or fixed-price contract with economic price adjustment is contemplated, unless—

(A) The acquisition is to be made under the simplified acquisition procedures in Part 13;

(B) The solicitation is a request for technical proposals under two-step sealed bidding procedures; or

(C) The solicitation is for utility services for which rates are set by law or regulation.

(ii) 52.203-11, Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions. This provision applies to solicitations expected to exceed $150,000.

(iii) 52.203-18, Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation. This provision applies to all solicitations.

(iv) 52.204-3, Taxpayer Identification. This provision applies to solicitations that do not include the provision at 52.204-7, System for Award Management.

(v) 52.204-5, Women-Owned Business (Other Than Small Business). This provision applies to solicitations that—

(A) Are not set aside for small business concerns;

(B) Exceed the simplified acquisition threshold; and

(C) Are for contracts that will be performed in the United States or its outlying areas.

(vi) 52.209-2, Prohibition on Contracting with Inverted Domestic Corporations—Representation.

(vii) 52.209-5, Certification Regarding Responsibility Matters. This provision applies to solicitations where the contract value is expected to exceed the simplified acquisition threshold.

(viii) 52.209-11, Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. This provision applies to all solicitations.

(ix) 52.214-14, Place of Performance—Sealed Bidding. This provision applies to invitations for bids except those in which the place of performance is specified by the Government.

(x) 52.215-6, Place of Performance. This provision applies to solicitations unless the place of performance is specified by the Government.

(xi) 52.219-1, Small Business Program Representations (Basic & Alternate I). This provision applies to solicitations when the contract will be performed in the United States or its outlying areas.

(A) The basic provision applies when the solicitations are issued by other than DoD, NASA, and the Coast Guard.

(B) The provision with its Alternate I applies to solicitations issued by DoD, NASA, or the Coast Guard.

(xii) 52.219-2, Equal Low Bids. This provision applies to solicitations when contracting by sealed bidding and the contract will be performed in the United States or its outlying areas.

(xiii) 52.222-22, Previous Contracts and Compliance Reports. This provision applies to solicitations that include the clause at 52.222-26, Equal Opportunity.

(xiv) 52.222-25, Affirmative Action Compliance.This provision applies to solicitations, other than those for construction, when the solicitation includes the clause at 52.222-26, Equal Opportunity.

(xv) 52.222-38, Compliance with Veterans' Employment Reporting Requirements. This provision applies to solicitations when it is anticipated the contract award will exceed the simplified acquisition threshold and the contract is not for acquisition of commercial items.

(xvi) 52.223-1, Biobased Product Certification. This provision applies to solicitations that require the delivery or specify the use of USDA–designated items; or include the clause at 52.223-2, Affirmative Procurement of Biobased Products Under Service and Construction Contracts.

(xvii) 52.223-4, Recovered Material Certification. This provision applies to solicitations that are for, or specify the use of, EPA–designated items.

(xviii) 52.223-22, Public Disclosure of Greenhouse Gas Emissions and Reduction Goals–Representation. This provision applies to solicitation that include the clause at 52.204-7.

(xix) 52.225-2, Buy American Certificate. This provision applies to solicitations containing the clause at 52.225-1.

(xx) 52.225-4, Buy American—Free Trade Agreements—Israeli Trade Act Certificate. (Basic, Alternates I, II, and III.) This provision applies to solicitations containing the clause at 52.225-3.

(A) If the acquisition value is less than $25,000, the basic provision applies.

(B) If the acquisition value is $25,000 or more but is less than $50,000, the provision with its Alternate I applies.

(C) If the acquisition value is $50,000 or more but is less than $80,317, the provision with its Alternate II applies.

(D) If the acquisition value is $80,317 or more but is less than $100,000, the provision with its Alternate III applies.

(xxi) 52.225-6, Trade Agreements Certificate. This provision applies to solicitations containing the clause at 52.225-5.

(xxii) 52.225-20, Prohibition on Conducting Restricted Business Operations in Sudan—Certification. This provision applies to all solicitations.

(xxiii) 52.225-25, Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran-Representation and Certifications. This provision applies to all solicitations.

(xxiv) 52.226-2, Historically Black College or University and Minority Institution Representation. This provision applies to solicitations for research, studies, supplies, or services of the type normally acquired from higher educational institutions.

(2) The following representations or certifications are applicable as indicated by the Contracting Officer: [Contracting Officer check as appropriate.]

__ (i) 52.204-17, Ownership or Control of Offeror.

__ (ii) 52.204-20, Predecessor of Offeror.

__ (iii) 52.222-18, Certification Regarding Knowledge of Child Labor for Listed End Products.

__ (iv) 52.222-48, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment- Certification.

__ (v) 52.222-52, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Certification.

__ (vi) 52.223-9, with its Alternate I, Estimate of Percentage of Recovered Material Content for EPA–Designated Products (Alternate I only).

__ (vii) 52.227-6, Royalty Information.

__ (A) Basic.

__(B) Alternate I.

__ (viii) 52.227-15, Representation of Limited Rights Data and Restricted Computer Software.

(d) The offeror has completed the annual representations and certifications electronically via the SAM website accessed through https://www.acquisition.gov. After reviewing the SAM database information, the offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in paragraph (c) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [offeror to insert changes, identifying change by clause number, title, date]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR CLAUSE # TITLE DATE CHANGE

_____ _____ _____ _____

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted on SAM.

(End of provision)

## 52.204-19 INCORPORATION BY REFERENCE OF REPRESENTATIONS AND CERTIFICATIONS (DEC 2014)

The Contractor's representations and certifications, including those completed electronically via the System for Award Management (SAM), are incorporated by reference into the contract.

(End of clause)

## 52.209-2 PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS—REPRESENTATION (NOV 2015)

(a) Definitions. "Inverted domestic corporation" and "subsidiary" have the meaning given in the clause of this contract entitled Prohibition on Contracting with Inverted Domestic Corporations (52.209-10).

(b) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-2(b) applies or the requirement is waived in accordance with the procedures at 9.108-4.

(c) Representation. The Offeror represents that—

(1) It □ is, ☒ is not an inverted domestic corporation; and

(2) It □ is, ☒ is not a subsidiary of an inverted domestic corporation.

(End of provision)

## 52.209-7 INFORMATION REGARDING RESPONSIBILITY MATTERS (JUL 2013)

(a) *Definitions*. As used in this provision—

"Administrative proceeding" means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (*e.g.*, Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

"Federal contracts and grants with total value greater than $10,000,000" means—

(1) The total value of all current, active contracts and grants, including all priced options; and

(2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

"Principal" means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (*e.g.*, general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror [ ] has [x] does not have current active Federal contracts and grants with total value greater than $10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of $5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in—

(A) The payment of a monetary fine or penalty of $5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of $100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management database via https://www.acquisition.gov (see 52.204-7).

(End of provision)

## 52.209-11 REPRESENTATION BY CORPORATIONS REGARDING DELINQUENT TAX LIABILITY OR A FELONY CONVICTION UNDER ANY FEDERAL LAW (FEB 2016)

(a) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, the Government will not enter into a contract with any corporation that—

(1) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(2) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(b) The Offeror represents that—

(1) It is □ is not ☒ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(2) It is □ is not ☒ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(End of provision)

## 52.222-22 PREVIOUS CONTRACTS AND COMPLIANCE REPORTS (FEB 1999)

The offeror represents that—

It □ has, ☒ has not participated in a previous contract or subcontract subject to the Equal Opportunity clause of this solicitation;

It ☒ has, □ has not filed all required compliance reports; and

Representations indicating submission of required compliance reports, signed by proposed subcontractors, will be obtained before subcontract awards.

(End of provision)

## 52.223-22 PUBLIC DISCLOSURE OF GREENHOUSE GAS EMISSIONS AND REDUCTION GOALS-REPRESENTATION (DEC 2016)

(a) This representation shall be completed if the Offeror received $7.5 million or more in Federal contract awards in the prior Federal fiscal year. The representation is optional if the Offeror received less than $7.5 million in Federal contract awards in the prior Federal fiscal year.

(b) Representation. [Offeror is to check applicable blocks in paragraphs (1) and (2).]

(1) The Offeror (itself or through its immediate owner or highest-level owner) □ does, □ does not publicly disclose greenhouse gas emissions, i.e., make available on a publicly accessible website the results of a greenhouse gas inventory, performed in accordance with an accounting standard with publicly available and consistently applied criteria, such as the Greenhouse Gas Protocol Corporate Standard.

(2) The Offeror (itself or through its immediate owner or highest-level owner) □ does, □ does not publicly disclose a quantitative greenhouse gas emissions reduction goal, i.e., make available on a publicly available website a target to reduce absolute emissions or emissions intensity by a specific quantity or percentage.

(3) A publicly accessible website includes the Offeror's own website or a recognized, third-party greenhouse gas emissions reporting program.

(c) If the Offeror checked "does" in paragraphs (b)(1) or (b)(2) of this provision, respectively, the Offeror shall provide the publicly accessible website(s) where greenhouse gas emissions and/or reduction goals are reported:_____.

(End of provision)

124 Webster Avenue, Providence, Rhode Island 02909

8(a) Certified

DUNS: 006493690

Cage Code: 6PY01

| | |
|---|---|
| PRIMARY POINT OF CONTACT: | FERNANDO TAVARES<br>xxx@xxxemail.com<br>Office: 333/132-1589<br>Cell: 333/123-2411 |
| ADDRESS: | 124 WEBSTER AVENUE<br>PROVIDENCE, RI 02909<br>Office: 333/121-1589<br>Fax: 333/121-1767 |
| DUNS NUMBER: | 006493690 |
| NUMBER OF YEARS IN BUSINESS: | 11 YEARS |

| | | |
|---|---|---|
| CURRENT COMMITMENTS: | FOUR SEASONS HOTEL, BOSTON, MA | $6,030,775 |
| | GENZYME, FRAMINGHAM, MA | $1,051,715 |
| | LOWELL JUSTICE CENTER, LOWELL, MA | $1,921,928 |
| | WYNN BOSTON HARBOR, EVERETT, MA | $3,000,000 |
| | MGM HOTEL, SPRINGFIELD, MA | $ 267,190 |
| | ALNYLAM, NORTON, MA | $ 695,000 |
| | TWIN RIVER CASINO HOTEL, LINCOLN, RI | $ 580,066 |
| | RIVER HOUSE GRAD HOUSING, PROVIDENCE, RI | $ 383,167 |
| | UNIVERSITY OF RHODE ISLAND | $1,620,000 |
| | OLIVER HAZARD PERRY SCHOOL, PROVIDENCE, RI | $ 352,438 |

# HAZARDOUS MATERIALS IDENTIFICATION LISTING

In accordance with Clause 52.223-3, Hazardous Material Identification and Material Safety Data, of the Contract, contractor is required to identify any hazardous materials that will be delivered under this contract.

List below all known hazardous materials to be used in performance of the work and submit with the proposal/bid. <u>If material components are unknown at the time of submission, respond with a statement to that effect.</u>

| | |
|---|---|
| No Hazardous Materials per Addendum No. 5 Questions and Answers Item No. 3 dated 6/21/2018 | |
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# PROPOSED EQUALS

In accordance with Provision 52.211-06 (Section L), the following products are being proposed as equals. Provide all attachments required by the provision, as applicable. Use additional sheets of paper as necessary.

| ***Section No.*** | ***Paragraph No.*** | ***Product/Model No.*** | ***Proposed Product/Model No.*** |
|---|---|---|---|
| 08 0352 | 2.2 to 2.3 | Architectural Components Wood Windows | D. Hayward Restorations |
| 08 5113 | 2.3 | Stergis Window Aluminum Windows | Stergis Window Aluminum Windows |
| | | | |
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| | | | |

A. By submitting the proposed equal, the contractor certifies that it:

1. Has investigated the proposed item and determined that it is equal or superior in all respects to that specified.

2. Will provide, as a minimum, the same warranties for the proposed item as for the item specified.

3. Has determined that the proposed item is compatible with interfacing items.

4. Will coordinate the installation of an approved item and make all changes required in other elements of the work because of the substitution.

5. Waives all claims for additional expenses that may be incurred as a result of the substitution.

B. The Contractor is encouraged to submit for approval products that exceed accessibility standards, are sustainable and/or made from recycled or environmentally responsible material. Every effort will be made to approve these materials.

# GENERAL REFERENCES

INSTRUCTIONS: The purpose of this form is for the offeror to provide the Government with general references.

It is especially important that the offeror disclose instances in which their relationships with the references may be considered less than fully satisfactory. The offeror should tell their side of the story and describe remedial corrective action that has been taken or will be taken to correct the deficiency. Failure to do so may result in a determination that an offeror has been less than candid with the Government, which could result in an unfavorable assessment of the offeror's past performance record. Provide explanations on separate sheets as necessary.

**NAME OF CONTRACTOR/OFFEROR:** TAVARES LLC

**SURETY**

| | |
|---|---|
| Name of Surety: | BERKLEY INSURANCE COMPANY |
| Address of Surety: | 475 STEAMBOAT ROAD, GREENWICH, CT 06830 |
| Name of Agent: | ALLIANT INSURANCE SERVICES, INC. |
| Telephone Number: | 617.535.7260 |

**CORPORATE BANK**

| | |
|---|---|
| Name of Bank: | CITIZENS BANK |
| Address of Bank: | 134 PLEASANT STREET, PORTSMOUTH, NEW HAMPSHIRE 03801 |
| Name of Agent: | PRISCILLA MACINNIS |
| Telephone Number: | 603.773.2434 |
| Types and Numbers of Accounts: | CHECKING ACCOUNT 3314559552 |

**CORPORATE BANK**

| | |
|---|---|
| Name of Bank: | |
| Address of Bank: | |
| Name of Agent: | |
| Telephone Number: | |
| Types and Numbers of Accounts: | |

**INSURANCE COMPANY**

| | |
|---|---|
| Name: | NEWPORT INSURANCE AGENCY |
| Address: | 460 EAST MAIN ROAD, MIDDLETOWN, RHODE ISLAND 02842 |
| Name of Agent: | ROBERT HOLE |
| Telephone Number: | 401.619.1660 |
| Types of Policies: | GENERAL LIABILITY, AUTO LIABILITY, EXCESS LIABILITY, WORKERS COMPENSATION AND EMPLOYERS' LIABILITY, INSTALLATION FLOATER, AND POLLUTION LIABILITY AND MOLD |

**SUBCONTRACTOR**

| | |
|---|---|
| Name: | Essex Newbury North Contracting Corp. |
| Address: | 65 Parker Street, Unit 5, Newburyport, MA 01950 |
| Name of Contact: | Gary P. Snoonian |
| Telephone Number: | 978-463-5414 |
| Area of Specialized Work: | General Construction, Construction Management, Commercial and Industrial Rough Carpentry, Finish Carpentry, Drywall, Miscellaneous Interior and Exterior Demolition, General Cleaning, and Asbestos Abatement |

**SUBCONTRACTOR**

| | |
|---|---|
| Name: | Excell Construction Corp. |
| Address: | 5 Divison Street, Building A, East Greenwich, RI 02818 |
| Name of Contact: | Justin Brooks |
| Telephone Number: | 401-884-7174 |
| Area of Specialized Work: | General Construction, Commercial and Industrial Rough Carpentry, Finish Carpentry, Drywall, Miscellaneous Interior and Exterior Demolition, General Cleaning, |

**SUBCONTRACTOR**

| | |
|---|---|
| Name: | Commercial Installations |
| Address: | 680 Lisbon Street, Lewiston, Maine 04240 |
| Name of Contact: | William Bourgoin |
| Telephone Number: | 207-784-7943 |
| Area of Specialized Work: | Installation of Doors, Frames, Hardware, |

**MATERIAL SUPPLIER**

| | |
|---|---|
| Name: | Stergis Windows and Doors |
| Address: | 79 Walton Street, Attleboro, MA 02703 |
| Name of Contact: | Dan Ayotte |
| Telephone Number: | 508-455-0661 |
| Types of Material: | Window Supplier |

**MATERIAL SUPPLIER**

| | |
|---|---|
| Name: | Winco Windows Company |
| Address: | 6200 Maple Avenue, St. Louis, MO 63130 |
| Name of Contact: | Elise Macchi |
| Telephone Number: | 314.725.8088 |
| Types of Material: | Window Supplier |

**MATERIAL SUPPLIER**

| | |
|---|---|
| Name: | United Builders Supply |
| Address: | 30 Oak Street, Westerly, RI 02891 |
| Name of Contact: | Jeff Brennan |
| Telephone Number: | 800-439-2832 |
| Types of Material: | Building Materials and Construction Supplies |

# Report on Limitations on Subcontracting

[Template Version 11/8/17]

This report is required for 8(a) or socio-economic set-aside service contracts (including construction) priced at or above $150,000.

| | | |
|---|---|---|
| **Contract Number:** | 140P2018R0045 | |
| **Prime Contractor:** | Tavares LLC | |
| **Total Current Contract Price:** | $2,942,548.00 | |
| **Type of Set Aside:** | Total Small Business Set Aside | |
| **Period of Performance** | (Estimated 9/24/2018 thru 6/21/2019 | |
| **Type of Service (Required Participation):** | Furnish and Install 333 Aluminum Windows and 27 Wood Windows | |
| | 1) Services (except construction). At least 50 percent of the cost of contract performance incurred for personnel shall be expended for employees of the concern. | |
| | 2) General construction. The concern will perform at least 15 percent of the cost of the contract, not including the cost of materials, with its own employees. | |
| | 3) Construction by special trade contractors. The concern will perform at least 25 percent of the cost of the contract, not including the cost of materials, with its own employees. | |
| | | |

| **Participartion Calculation as of the Current Invoice** | | | |
|---|---|---|---|
| **Amounts shown below shall include amounts from all previous invoices and the current invoice. Exclude the cost of materials.** | | | |
| 1) Amount Invoiced by the Prime Contractor: | | $2,942,548.00 | |
| 2) Portion of Amount Invoiced for All Similarly Situated Subcontractors (SSS)* | | | |
| Total Amount Paid To: | | | |
| Total Amount Paid To: | | | |
| Total Amount Paid To: | | | |
| Total Amount Paid To: | | | |
| Total Amount Paid To: | | | Add additional rows if more than 5 SSS |
| 3) Portion of Amount Invoiced for Non-Similarly Situated Subcontractors (NSS) | | | |
| Total Amount Paid To: | | | |
| Total Amount Paid To: | | | |
| Total Amount Paid To: | | | |
| Total Amount Paid To: | | | |
| Total Amount Paid To: | | | Add additional rows if more than 5 NSS |
| 4) Prime Contractor's Participation % | | 100% | Modify formula if additional rows added above |

* Similarly Situated Subcontractor (SSS): is a small business subcontractor that is a participant of the same Small Business Administration (SBA) program that qualified the prime contractor as an eligible offeror and awardee of the contract as defined in 13 CFR 125.6 (i.e. Small Business, HUBZone Business, Service Disabled Veteran Owned Small Business (SDOVB), etc.)

** Limitation on Subcontracting Percentage = (Total amount invoiced by the Prime Contractor - Portion of total amount invoiced for Non-Similarly Situated Subcontractors (NSS)/ Total amount invoiced by the Prime Contractor)

| **Corrective Action Plan** |
|---|
| If the Prime Contractor's Participation % noted in line 4 above is not in compliance with the % required by contract clause 52.219-14 then the prime contractor shall provide a written corrective action plan below: |
| |